

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC038155: ROBERTA KOEHL vs FCA US, LLC, et al.

08/21/2026 in Department 44

**Motion to Compel INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF
CIVIL PROCEDURE 871.26 AND REQUEST FOR MONETARY SANCTIONS**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure § 871.26 and Request for Monetary Sanctions

Tentative Ruling:

Plaintiff Roberta Koehl’s Motion to Compel Initial Disclosures Pursuant to Code Civ. Proc. § 871.26 is GRANTED in part and DENIED in part.

Within 10 calendar days, Defendant FCA US, LLC shall:

1. Produce any existing vehicle-specific PDI, inspection, or delivery documentation required by Code Civ. Proc. § 871.26(h)(6) that has not previously been produced;
2. Produce any portion of the complete subject-vehicle warranty transaction history required by Code Civ. Proc. § 871.26(h)(7) that has not previously been produced, consistent with the limitations stated above;

3. Provide any missing portion of the complete listing of required field actions applicable to the subject vehicle under Code Civ. Proc. § 871.26(h)(8);
4. Produce any published TSBs and ISBs for the same make, model, and year reasonably related to the subject vehicle's nonconformities that have not previously been produced under Code Civ. Proc. § 871.26(h)(9) and (10); and
5. Identify the Bates ranges and dates of the prior productions FCA contends satisfy Code Civ. Proc. § 871.26(h)(12) and (13). If FCA cannot identify the referenced production, it shall produce the responsive materials within the same 10-day period. No duplicative production is required.

The motion is DENIED to the extent Plaintiff seeks materials exceeding the express scope of Code Civ. Proc. § 871.26(h), including wholesale DealerCONNECT or internal-database production, other-vehicle information, unspecified categories described as "not exhaustive," supporting recall materials beyond the listing required by Code Civ. Proc. § 871.26(h)(8), and materials that do not qualify as TSBs or ISBs under Code Civ. Proc. § 871.26(h)(9) and (10).

The Court does not reach Plaintiff's request, first raised in reply, for relief under Code Civ. Proc. § 871.26(h)(17).

Pursuant to Code Civ. Proc. § 871.26(j)(1), monetary sanctions of \$2,500 are imposed against defense counsel and shall be paid to Plaintiff's counsel within 15 business days.

Because Plaintiff's February 17, 2026 motion presently set for September 23, 2026 is substantively duplicative of the motion decided herein and seeks the same relief, that motion is ordered off calendar as moot.

Moving party to give notice.